Police secretly conducting facial recognition searches of passport database

Revelation sparks concern among MPs and watchdogs over implications for data protection and relationship between the citizen and the state

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Police forces have been secretly conducting hundreds of facial recognition searches using the UK's database of 46 million British passport holders, it can be revealed.

Chris Philp, the policing minister, raised the prospect last year of officers accessing the database of passport holders so they could use facial recognition to identify suspects in all burglaries, thefts and shoplifting.

An investigation by The Telegraph and Liberty Investigates, however, has found that the practice has been taking place since at least 2019 – with searches ramping up in the months before Mr Philp's speech on the plans at October's Tory party conference.

Data obtained from the Home Office through a Freedom of Information (FOI) Request shows forces searched the UK passport database – which contains the images of all 46 million British passport holders – using facial recognition technology more than 300 times in the first nine months of 2023. Forces have also carried out searches of the UK immigration database, which holds information on foreign nationals.

The revelation has sparked concern among MPs and watchdogs. After being told about the use of passport data, a spokesman for John Edwards, the information commissioner, said they would be raising the disclosure and its implications for data protection with the Home Office.

The spokesman said: "The Information Commissioner's Office is engaged with the Home Office on a number of issues related to facial recognition technology to better ensure its use in line with data protection principles. We are now engaging on the issue of the passport database in light of this additional information."

'Importance of transparency'

David Davis, the former cabinet minister, said there was "no explicit legislative basis" for using facial recognition technology in the UK.

"The data on both the UK passport database and the immigration database was not provided for these purposes," he said. "For the police to act like this undermines the data relationship between the citizen and the state. At the very least, the House of Commons should be informed precisely who authorised this and who carried it out."

Tony Porter, the former surveillance camera commissioner, said it was "problematic" that passport holders' data was being searched by police without their prior knowledge or consent that it was to be used for such a purpose.

"The other thing that is problematic is that the Government has extolled the importance of transparency. They should be putting this out there about how and why it's legitimate otherwise they risk losing the trust and confidence of the public," said Mr Porter, a former assistant chief constable.

Facial recognition technology allows the police to use images taken from sources such as CCTV or mobile phone footage – even those that are blurred or partially obscured – and search for matches in a database of potential suspects.

Use of the technology has sharply increased in recent years, and forces already conduct thousands of searches annually using the Police National Database, which holds around 16 million images of people who have been arrested including hundreds of thousands who were never charged or were cleared of an offence. Mr Philp is urging police forces to adopt facial recognition for its crime-fighting capabilities.

In December it emerged that police would also soon be able to search a database of Britain's 50 million driving licence holders, under a new law making its way through Parliament.

'It's deeply concerning'

Madeleine Stone, senior advocacy officer at campaign group Big Brother Watch, said its extension to passports was "deeply concerning." "There is no clear legal basis for this intrusive technology. We urgently need a democratic, lawful approach to the role of facial biometrics in Britain," she said.

The FOI request shows police forces conducted 391 facial recognition searches of the passport database over the past five years – most of them in 2023, when more than two-thirds of territorial forces across England, Wales and Scotland conducted at least one search. Eleven searches of the immigration database were also conducted last year. The Home Office said they were targeted on the most serious offences.

The Metropolitan Police was responsible for almost one in three passport searches in the first nine months of 2023. A spokesman for the force said: "Retrospective facial recognition is used after a crime has taken place as part of an investigation to try and identify who a person is. This technology significantly helped progress numerous investigations including those for murder, rape and assault. We use a number of methods to try to identify suspects, in a small number of cases we will work with other organisations who may be able to assist us."

A Home Office spokesman said: "The Government is committed to making sure the police have the tools and technology they need to solve and prevent crimes, bring offenders to justice, and keep people safe.

"Technology such as facial recognition helps the police quickly and accurately identify those wanted for serious crimes, as well as missing or vulnerable people. It also frees up police time and resources, meaning more officers can be out on the beat, engaging with communities and carrying out complex investigations."